

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,
Plaintiff,
v.
MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

**DECLARATION OF JOSEPH KIRCHNER IN
SUPPORT OF PLAINTIFF'S OPPOSITIONS
TO DEFENDANTS' MOTIONS TO DISMISS
(ECF NOS. 69 AND 70)**

(28 U.S.C. § 1746)

I, **Joseph Kirchner**, declare under penalty of perjury under the laws of the United States of America, pursuant to 28 U.S.C. § 1746, that the following is true and correct:

1. I am the Plaintiff in *Kirchner v. Johnson et al.*, No. 1:25-cv-02735-ACR (D.D.C.), proceeding pro se. I make this declaration on personal knowledge and, as to the qualifications and work of the professionals identified below, on information they have provided to me directly; if called as a witness, I could and would testify competently to the matters set forth herein.

2. I make this declaration in support of Plaintiff's Opposition to the Federal Defendants' Motion to Dismiss (ECF No. 69) and Plaintiff's Opposition to the Corporate Defendants' Joint Motion to Dismiss (ECF No. 70). Both motions contend that the Third Amended Complaint is "patently insubstantial," and the immunity authorities the Federal Defendants invoke rest, at their foundation, on the Star Chamber record described below. I set forth (a) how the record copies of that manuscript record were acquired, the chain of their custody, the means by which the Court may verify every copy filed in the accompanying documentary appendix against the archive-delivered masters, and the licence under which those images are now published, (b) the fact and nature of a professional scholarly undertaking I have commissioned, (c) the comparative research

corpora I have assembled and the programmatic census by which I have searched them, and (d) related records identified at catalogue level, one further account the manuscript contains, and the further professional review I intend, because all four bear directly on the character and seriousness of the investigation underlying this action and on the historical record at the foundation of the immunity doctrine. I do not set forth here the legal significance of the record, which is addressed in Plaintiff's memoranda; I attest to the acquisition, custody, and verifiability of the record copies, and to the commission itself.

The Record at the Foundation of the Doctrine

3. The judicial-immunity doctrine invoked by the federal defendants in the companion motion descends, through the common-law pedigree the Complaint traces, from a decision of the Court of Star Chamber, *Floyd v. Barker*, decided in 1607. The surviving manuscript record connected to that litigation is held at The National Archives of the United Kingdom, at Kew: principally the Star Chamber file catalogued STAC 8/203/38, together with related records. The record consists of the original parchment membranes of the proceeding. According to the published scholarly edition of Sir Edward Coke's contemporary notebook (edited by Sir John Baker and issued by the Selden Society as volume 142 (for 2024)), the Court of Star Chamber ordered that the bill of the companion suit against the judge be removed from the file and defaced; no file of that suit is known to survive. To my knowledge, and as confirmed to me by the specialists I approached, the surviving manuscript record had never been transcribed or published, and has never been examined by any court that has relied upon the doctrine descending from the case.

Acquisition, Custody, and Verifiability of the Record Copies

4. On June 16, 2026, I placed an order with The National Archives for record copies of every surviving membrane of the Star Chamber file catalogued STAC 8/203/38 (transaction reference C/356346303007231F; order item RC8368179).

5. On July 1, 2026, The National Archives delivered the record copy by digital download: ten digital images, one for each surviving membrane of the file. Upon receipt I computed the SHA-256 cryptographic hash of each of the ten image files and recorded the ten hashes in a fixity manifest, which is retained. Any copy of these images filed with the Court, including the copies in the documentary appendix accompanying these oppositions, can be verified as identical to the files The National Archives delivered by recomputing its hash against that manifest.

6. On July 15, 2026, in response to my enquiry whether any page of the file had been missed, The National Archives' Digitisation Centre confirmed in writing that its Production Team had reviewed the original document; that the ink visible on the page I had asked about shows through from the preceding page, so that "you have received copies of all pages and none are missing"; and that the Archives scans all images "as standard research quality and at 300ppi in Jpeg format" and its Production Team "have confirmed that your images do match this standard and are a true representation of the document." A true and correct copy of that correspondence is retained.

7. Between July 1 and July 8, 2026, I transcribed the ten membranes in full, at first hand, in a documented four-pass campaign conducted under a written methodology following diplomatic conventions: original spelling retained, interlineations and deletions recorded, and uncertain readings expressly marked. All of my readings are provisional and may now be tested against the independent professional transcription described below.

8. A second contemporaneous manuscript account of the case survives in a Jacobean collection of Star Chamber reports held by the Harvard Law School Library (catalogued "England and Wales, Court of Star Chamber. Star Chamber Collection, 1607–1623. Manuscript. HLS MS 149"), in which the report of the case runs from folio 81r to folio 83r. On June 10, 2026, I retrieved the library's public digital facsimile of folios 81r through 83v (six folio images) through the Harvard Library IIIF Image API from the library's published manifest. I transcribed the six folio sides in full under the same written methodology; all of those readings are provisional and are disclosed as such in the accompanying memoranda, and no professional transcription of this manuscript yet exists.

9. The printed and published sources cited in the memoranda or included in the documentary appendix (among them the received print of the case at 77 Eng. Rep. 1305–08; the first edition of the report in *The Twelfth Part of the Reports* (London, 1656); the Public Record Office's *List of Sheriffs for England and Wales* (Lists and Indexes No. IX, 1898); and the *Statutes of the Realm* text of the Habeas Corpus Act 1640) are page images of public-domain published editions, retained in my research library with provenance records.

The Comparative Corpora and the Census of the Doctrine's Language

10. In the course of the investigation underlying this action I have assembled in my research library local digital copies of the two principal law-report corpora on which the immunity doctrine's genealogy rests: (a) the United States Reports: 596 volumes held as page-image PDFs, the Supreme Court's own publications where available, with a machine-searchable text conversion of every volume from volume 2 through volume 592, complete and without gap; and (b) The English Reports (Full Reprint, 1900–1932): 151 of its 176 report volumes, including the complete Privy Council, Exchequer, Ecclesiastical and Admiralty, Crown Cases Reserved, and

Nisi Prius series, together with a maintained holdings index that maps every volume of the series to the copy held or to its known availability elsewhere. I likewise hold the complete text of The Federalist (all eighty-five papers, verified against the paper numbering).

11. I have searched those corpora programmatically, personally and through automated searches conducted at my direction under written specifications whose scripts and outputs are retained. The method is reproducible: word-boundary pattern searches for "fear" and nine morphological variants, each hit captured with surrounding context and pinned to its volume and page; a two-tier classifier isolating hits arising in an immunity context; and control checks run before any results were credited, verifying that the instrument captured independently known instances before it was trusted on unknown ones. Because portions of the text derive from optical character recognition of scanned page images, the method compensates with variant queries for recognition artifacts, and every quotation on which I place reliance has been verified against the page image of the printed reporter. Across the United States Reports the search returned 7,312 occurrences of the fear family, of which 902 arise in an immunity context; each of the 902 has been individually read and classified. A parallel, variant-compensated census of The English Reports for the citation history of *Floyd v. Barker* was conducted and is likewise retained.

12. From those censuses and my reading of the primary reports I have compiled a genealogical matrix of the immunity doctrine (at this writing 149 decisions and records spanning 1354 to the present), recording for each entry its citation stream; the presence and form of the fear-or-fearlessness rationale; the harm the court invoked and whether it was hypothetical or tested against a record; and, set against that harm, what the court left the plaintiff before it, remedy or none; the antecedent authority relied upon; and whether the protection asserted rests

on jurisdiction or on status. Subject to the margin of error inherent in searching corpora of this size partly through OCR-derived text: every deployment of the rationale that judicial or official liability must be foreclosed for the fear its prospect would instill — on which the immunity authorities cited in the Federal Defendants' motion rest, including *Harlow v. Fitzgerald*, 457 U.S. 800, 814 and n.34 (1982) — traces through the citation chain recorded in that matrix to the Court of Star Chamber's resolution in *Floyd v. Barker* (1607), whose manuscript record is described above; and my searches identified no earlier or independent constitutional or statutory foundation for it in American law.

13. I have run the same census on *The Federalist* for the two words the modern immunity cases take from it. In the text of the edition I hold (paragraph 10, above), the energy family appears thirty times and the vigor family twenty-three times: fifty-three occurrences in all (a raw character search returns more, but the surplus is "navigation" and "vigilance," different roots, excluded). Of the fifty-three, every use save one denotes the structural power of an institution or the design of an office ("the vigour of government," "a vigorous execution of the laws"), the one exception denoting the intensity of a popular sentiment; none denotes a subjective state of the office-holder, and none a freedom from legal consequence to be received at the entrance of office.

The Commissioned Professional Transcription

14. On the evening of July 13, 2026, I wrote to commission the professional transcription of that original manuscript record. Transcription of early-modern English legal manuscripts of this kind requires specialized training in post-medieval palaeography and in Latin, and I therefore sought the assistance of established specialists in that field. I commissioned a full transcription of the file, not a verification of my own reading: my working transcription traveled with the

commission papers, its use left entirely to the transcriber's discretion, while I withheld my comparative ranking analyses and asked, as a preference rather than a requirement, that the disputed readings be read blind first, the professional eye before my text, so that the professional judgment would be anchored by the parchment and not by my reasoning. The readings and the responsibility for the final text were the transcriber's alone.

The Specialists Approached

15. I approached five specialists in early-modern English legal palaeography and record scholarship. Three accepted the commission, each an established professional in the field; a fourth was unable to accept solely because of a prior scheduling conflict and has nonetheless continued, unsolicited, to furnish leads toward corroborating archival records, which remain to be examined and about which I make no representation.

16. The archivist I retained to prepare the transcription is **Christopher Whittick**, DL, MA, FSA, FRHistS. Mr. Whittick read Jurisprudence at Oxford; served for more than four decades as an English county archivist, latterly as a County Archivist; has taught post-medieval palaeography to the staff of The National Archives and on the Keele University palaeography programme; and is an active editor of published editions of early-modern legal records. He replied about an hour later with his professional credentials, accepted the commission the following morning, July 14, 2026, and began the transcription immediately. He agreed to the schedule this litigation requires; examined the original documents at The National Archives on August 1, 2026; delivered the completed transcripts of the interrogatories, the depositions, and the answer on August 4, 2026; and is preparing what will be the first published scholarly edition of the manuscript record.

17. Mr. Whittick is aware that his work is being submitted in connection with this litigation and has agreed to it. He has provided a sworn declaration attesting to his qualifications and to the method of his transcription, which is of record at ECF No. 72-1.

Purpose

18. The commission I describe has been performed. The surviving manuscript record at the foundation of the immunity doctrine, never before transcribed in the four centuries courts have relied upon the case it records, has now been professionally transcribed, collated against the originals at Kew, and delivered, under a sworn declaration of its author of record (ECF No. 72-1). I undertook this because the primary-source foundation of a doctrine central to this litigation had never been assembled, and because I believe the historical record should be placed before the Court and the public accurately and in full. I offer the completed work, and the professional engagement it drew from specialists of this caliber, in response to the Motion's characterization of this action as fictitious or frivolous.

19. True and correct copies of my written inquiry and of the specialists' responses, of the order and delivery records and archive correspondence described in paragraphs 4 through 6, and of the fixity manifest described in paragraph 5, are retained and will be provided to the Court upon its request; so likewise are the corpus holdings indexes, the census records and classification data, the search scripts, and the genealogical matrix described in paragraphs 10 through 13.

Related Records Identified at Catalogue Level, and Intended Further Work

20. In the course of the same investigation I have also researched the published catalogues of the National Library of Wales (Llyfrgell Genedlaethol Cymru), whose Wynn (of Gwydir) Papers, the calendared correspondence of the leading gentry family of north Wales in the period,

are described item by item in the Library's online catalogue, keyed to the printed *Calendar of Wynn (of Gwydir) Papers, 1515–1690* (NLW 1926). I identify the records below solely by the Library's own published catalogue descriptions, on which alone I rely: I have not examined these manuscripts, and I assert nothing about their contents beyond what the archive's own descriptions state. What I attest is that records so described exist at the Library, that they may be cited by the Library's own references (by calendar number, or by volume and item number), and that they can be ordered, examined, and professionally transcribed in the same manner as the record described in paragraphs 4 through 6.

21. Among the most relevant, as the Library's catalogue describes them: (a) NLW MS 9052E/227 (Wynn of Gwydir 227), a letter of October 5, 1602, from Richard Barker, "second justice of north Wales, at Beaumaris," to John Wynn of Gwydir, thanking him for the Gwydir wine, "to his thinking more excellent than the grape of France or the wines of Greece or Spain"; (b) NLW MS 465E/316 (Wynn of Gwydir 316), a letter of December 5, 1604, from Sir Richard Lewkenor, chief justice of Chester, to John Wynn, thanking him for his gift, "the most valuable of the many received by the Justice since his coming into these parts," and closing with a New Year's gift of Oxford gloves "according to the old proverb, 'do take the goose and stick down a feather'"; (c) NLW MS 9052E/256 (Wynn of Gwydir 256), a letter of October 13, 1603, from Richard Young at Ludlow to John Wynn, "one of the Council of the Marches of Wales," reporting that the Lord President was unwilling to accept Wynn's present "for fear that (there being three Caernarfonshire murderers up for trial) he should be expected to show partiality in the matter"; (d) NLW MS 9055E/761 (Wynn of Gwydir 761), a letter of June 7, 1616, from the sheriff of Denbighshire to Sir John Wynn, describing £20 a week delivered "to the judges' steward for their joint provision, as was done by other sheriffs," and the advice to enclose "two

or three jacobus in the letter" to Sir Henry Townshend; (e) NLW MS 9059E/1217 (Wynn of Gwydir 1217), a petition of 1624 by the inhabitants of Wales to Charles, Prince of Wales, against the farming of the Greenwax revenues, on the stated ground that "they cannot look for justice at the hands of any farmer of the King's revenues"; and (f) NLW MS 9053E/372 (Wynn of Gwydir 372), a letter of December 16, 1605, from Wynn's son and heir in London to his father, sending him, in the Library's description, "a book containing the King's speech and an account of Gunpowder Plot" — the Plot's news arriving, six weeks after its discovery, in the same family papers in which the judicial correspondence above sits. The quoted language is the Library's own; true and correct copies of each catalogue entry are retained in my research library in the manner described in paragraph 9.

22. It is my intention to seek grant funding for the professional transcription and scholarly review of the related records that remain untranscribed: the Harvard manuscript described in paragraph 8, of which no professional transcription yet exists; the depositions file at The National Archives catalogued C 21/L4/5, under the archive's title "Loyde v Barker: depositions taken in the country," of which I ordered a complete digital copy (order placed August 6, 2026; transaction reference C/361172874407301K; order item RC8413958), delivered on August 27, 2026 in eighteen digital images; and the National Library of Wales records described in the two preceding paragraphs. The catalogue-level identifications above are offered for the documentary context they establish; the professional review I intend will place their contents, like the contents of the record already transcribed, before the Court and the public accurately and in full.

23. The Harvard manuscript's account of the 1607 hearing also records the court's own stated reason for refusing the bill: that if such a proceeding were admitted, the friends of a man there named (the letters read "Granetts") might likewise call the judge and jury in question for

his condemnation and execution. The most plausible referent of that name is Henry Garnet, the Jesuit executed in May 1606; the identification rests on a copyist's spelling, and I do not assert it as fact. What the published records establish without inference is proximity and personnel: Garnet was prosecuted by Sir Edward Coke and tried before Chief Justice Popham; the immunity resolutions reported the following year came from a court in which both men sat, Coke's report of them founding the doctrine at issue; and the Star Chamber's censures of the Plot's noble defendants in June 1606 fall in the same short span, in the same court. The account thus indicates that the aftermath of a recent condemnation was itself among the considerations weighed in constructing the rule, whatever name the copyist meant to set down. Whether that name is Garnet's is a question surviving records may yet illuminate: the sister manuscript copies of the account, none of which has been digitized, would permit the name to be read as other copyists wrote it; Sir Edward Coke's own notebook, in Sir John Baker's edition, is the logical place for his note of the matter, though whether such a note exists is itself a question the review must answer; and related records may survive elsewhere. Upon grant funding, that inquiry is among the specific objects of the professional review I intend.

The Licensed Publication of the Record Copies

24. On August 10, 2026, The National Archives' Image Library issued to me invoice and licence no. 22258 for the electronic publication of images of the STAC 8/203/38 record copies described in paragraphs 4 and 5, the licence covering by its terms the upload of "between one and twenty document images from The National Archives UK onto an open website, with rights in perpetuity." The Image Library confirmed to me in writing that "[n]o further paperwork is required, and you may proceed under the terms stated." I paid the licence fee of £40.00 by credit card, and the Archives' invoice records that fee as paid in full and the balance due as zero. I have

since published the ten full-resolution record-copy images, each accompanied by its SHA-256 hash, at <https://www.lawsofexistence.com/research/stac-8-203-38>. The images published there are the files The National Archives delivered, byte for byte: the ten hashes shown on the published pages are the same ten hashes recorded in the fixity manifest described in paragraph 5, so that any person may download a published image, compute its SHA-256 hash, and confirm that it is identical both to that manifest and to the copies of those images filed with the Court in the documentary appendix accompanying these oppositions. A true and correct copy of the licence invoice and of the Image Library correspondence is retained.

Executed on August 28, 2026, at Edina, Minnesota.

/s/ Joseph Kirchner
JOSEPH KIRCHNER
Pro Se Plaintiff